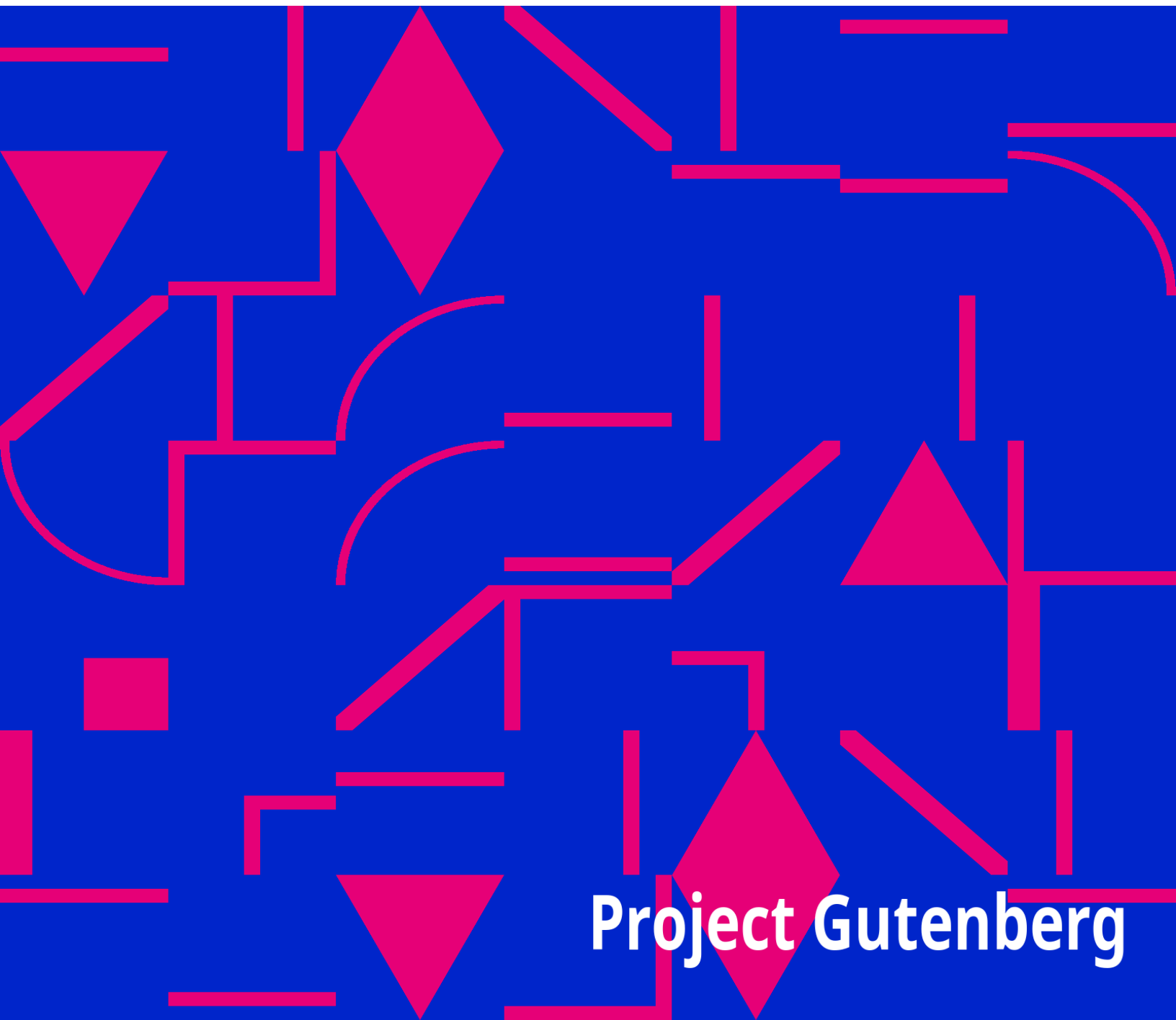


# Chambers's Edinburgh Journal, No. 440

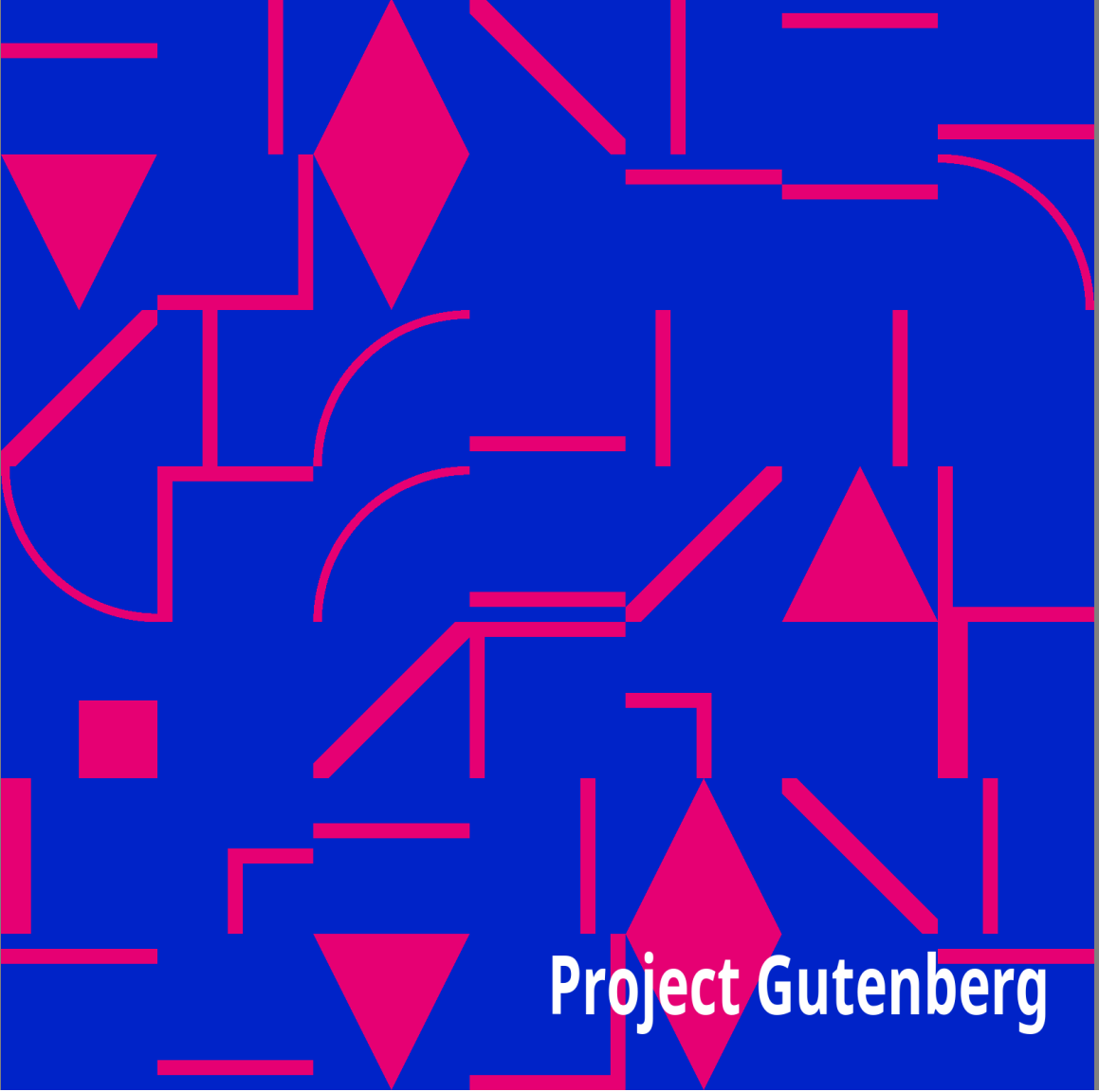
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# VISIT TO THE SCENE OF THE HOLMFIRTH FLOOD.

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The great flood which took place in the valley of Holmfirth in February last, was in itself a deeply-interesting and awe-exciting incident. I was curious to visit the scene, while the results of the catastrophe were still fresh, both on account of the sympathy I felt with the sufferers, and because of some physical problems which I thought might be illustrated by the effects, so far as these were still traceable. I therefore took an opportunity on the 22d of April, to proceed from Manchester to Holmfirth, accompanied by two friends, one of whom, though he had not visited the place since the calamity happened, was well acquainted with the scene and with the country generally, so as to be able to guide us in our walk. A railway excursion to Huddersfield, and a second trip on a different line from that town to the village of Holmfirth, introduced us to a region of softly-rounded hills and winding valleys, precisely resembling those of the Southern Highlands of Scotland, as might indeed be expected from the identity of the formation (Silurian), but which had this peculiar feature in addition, that every here and there was a little cloth-making village, taking advantage of the abundant water-power derived from the mountain-slopes. The swelling heights were brown and bare, like those of Tweeddale; and there the blackcock may still, I believe, be found. The slopes are purely pastoral, with small farm-steadings scattered over them. But down in the bottom of the dale, we see the heavy stone-and-lime mill starting up from the bare landscape, with a sprawling village of mean cottages surrounding it, giving token of an industrial life totally opposite to that which is found beside the silver streams of the Tweed and its tributaries. When we passed near any of these spots, we were sure to catch the unlovely details, so frequently, though so unnecessarily attendant on factory-life—the paltry house, the unpaved, unscavengered street, the fry of dirty children. It was a beautiful tract of natural scenery in the process of being degraded by contact with man and his works.

Arriving at Holmfirth at one o'clock, we found it to be a somewhat better kind of village, chiefly composed of one or two irregular streets running along the bottom of a narrow valley. Hitherto, in passing up the lower part of the vale, we had looked in vain for any traces of the inundation; but now we suddenly found ourselves in the midst of ruin and devastation. Holmfirth is only two miles and a half from the reservoir, and being at a contracted part of the valley, the water came upon it in great depth and with great force. We found a bridge deprived of its parapets, the boundary-walls of factories broken down, and court-yards filled with débris and mud. Several large houses had end or side walls taken away, or were shattered past remedy. In a narrow street running parallel with the river, and in some places open to it, many of the houses bore chalk-marks a little way up the second storey, indicating the height to which the flood had reached. When we looked across the valley, and mentally scanned the space below that level, we obtained some idea of the immense stream of water which had swept through, or rather over the village.

A rustic guide, obtained at the inn, went on with us through the town, pointing out that in this factory precious machinery had been swept away—in that house a mother and five children had been drowned in their beds—here some wonderful escape had taken place—there had befallen some piteous tragedy. Soon clearing the village, we came to a factory which stood in the bottom of the valley, with some ruined buildings beside it. This had been the property of a Mr Sandford, and he lived close to his mill. Taken completely unprepared by the inundation, he and his family had been carried off, along with nearly every fragment of their house. His body was discovered a considerable time after, at a distance of many miles down the valley. It may be remarked, that about 100 people perished in the flood; and out of that number, at the time of our visit, only one body remained unrecovered.

The catastrophe is too recent to require much detail. It took its origin, as is well known, in a reservoir of water for the use of the mills, formed by a dam across the valley. This had been constructed in 1838, and in an imperfect manner. The embankment, eighty feet in height, sloped outwards and inwards, with facings of masonry, thus obeying the proper rule as to form; but the *puddling*, or clay-casing of the interior, was defective, and it is

believed that a spring existed underneath. Some years ago, the embankment began to sink, so that its upper line became a curve, the deepest part of which was eight or ten feet below the uppermost. This should have given some alarm to the commissioners appointed to manage the reservoir; and the danger was actually pointed out, and insisted upon so long ago as 1844. But the commission became insolvent, and went into Chancery; so nothing was done. A sort of safety-valve is provided in such works, exactly of the same nature as the waste-pipe of a common cistern. It consists of a hollow tower of masonry rising within the embankment, in connection with a sluice-passage, or *by-wash*, by which the water may be let off. This tower, rising to within a few feet of the original upper level of the embankment, was of course sure to receive and discharge any water which might come to the height of its own lip, thus insuring that the water should never quite fill the reservoir, or charge it beyond its calculated strength. By the sluice provision, again, the water could at any time be discharged, even before it reached nearly so high a point. Unfortunately, this part of the work was in an inefficient state, the embankment having itself sunk below the level of the open-mouthed top of the tower, while the sluice below was blocked up with rubbish. It was subsequently declared by the manager, that this defect might have been remedied at any time by an expenditure of L.12, 10s.! If the commission could not or would not advance this small sum, one would have thought that the mill-owners might have seen the propriety of clubbing for so cheap a purchase of safety. They failed to do so, and the destruction of property to the extent of half a million, the interruption of the employment of 7000 people, and the loss of 100 lives, has been the consequence. Surely there never was a more striking illustration of the Old Richard proverb: 'For want of a nail the shoe was lost, for want of a shoe the horse was lost,' &c.

The night between the 4th and 5th of February was one of calm moonlight; but heavy rains had fallen for a fortnight before, and an uncommon mass of water had been accumulated behind the Bilberry embankment. The vague apprehensions of bypast years reviving at this crisis, some neighbours had been on the outlook for a catastrophe. They gathered at midnight round the spot, speculating on what would be the consequence if that huge embankment should burst. There were already three leaks in it, and the water was beginning to pour over the upper edge. A member of the 'sluice-



committee' was heard to say, that before two o'clock there would be such a scene as no one had ever seen the like of, and not a mill would be left in the valley. Two persons were then *understood* to be sent off, to give warning to the people down the valley; but no good account of the proceedings of these two messengers has ever been given. It appears as if the very singularity of the dreaded event created a confidence in its not taking place. By and by, a breach was made in the casing of the embankment just below the top; the water then got in between the casing further down, and the puddle or clay which invested the internal mass, composed of mere rubbish. In half an hour, a great extent of this case was heaved off by the water, and immediately after a tremendous breach was made through the embankment, and an aqueous avalanche poured through. Men then began to run down the valley, to waken the sleepers, but the water ran faster. In a few minutes, it had reached the village, two miles and a half distant, carrying with it nearly everything which came directly in its way. It is said to have taken nearly twenty minutes to pass that village—a fact which gives a striking idea of the enormous mass of water concerned.

About a mile and a half above the village, we came to a modern church, which had been set down in the bottom of the valley, close to the river-side. Entering, we found some curious memorials of the operation of water, in the upbreak of the whole system of flooring and seating, which now lay in irregular distorted masses, mingled with all kinds of rubbish. Bibles and prayer-books still lay about among the seats, as if the people had never so far recovered from the hopeless feeling originally impressed upon them, as to put out a hand for the restoration of order. The position of this church and its fate give occasion for a remark which, if duly remembered and acted upon, may save many a good building from destruction. It should be known, that the meadow close beside a river—what is called in Scotland the *haugh*—is not a suitable place for any building or town, and this simply because it is, strictly speaking, a part of the river-bed. It is the winter or flood-channel of the stream, and has indeed been formed by it during inundations. Unless, therefore, under favour of strong embankments, no building there can be secure from occasional inundation. Thus, for example, a large part of Westminster, and nearly the whole borough of Southwark, are built where no human dwellings should be. The fair city of Perth is a solecism in point of site, and many a flooding it gets in consequence. When

a higher site can be obtained in the neighbourhood, out of reach of floods, it is pure folly to build in a *haugh*—that is, the first plain beside a river.

We were coming within a mile of the Bilberry embankment, when we began to observe a new class of phenomena. Hitherto, the channel of the stream had not exhibited any unusual materials; nor had its banks been much broken, except in a few places. We had been on the outlook to observe if the flood, and the heavy matters with which it was charged, had produced any abrasion of the subjacent rock-structure. No such effects could be traced. We were now, however, getting within the range of the scattered débris of the embankment, and quickly detected the presence of masses of a kind of rubbish different from the rounded pebbles usually found in the bed of a river. There were long *traînées*, composed of mud and clay, including angular blocks of stone, which were constantly increasing in size as we passed onwards. These blocks were the materials of the embankment, which the water had carried thus far. No ploughing up of the channel had taken place, but simply much new matter had been deposited. In some places, these fresh deposits had transgressed into the fields; and where trees were involved, the bark on the side toward the upper part of the valley had generally been rubbed off. Not much more than a quarter of a mile from the reservoir, we found Mrs Birst's mill, or rather a memorial of its former existence, in a tall furnace-chimney, for literally no more survives. The deposit of rubbish was here eight or ten feet deep, and a number of workmen were engaged in excavating from it fragments of machinery and other articles. They had cleared out the ground-rooms of the house, though little more than the base of the walls remained. The scene was precisely like an excavation at Herculaneum. The outline of the rooms was beginning to be traceable. A grate and a fireplace appeared. We observed a child's shoe taken out and laid aside—an affecting image of the household desolation which had taken place. Mrs Birst, however, and her whole family, had been fortunate enough to escape with life, although with the loss of all their property. This mill, from its nearness to the reservoir, as well as the contractedness of the valley at the spot, had experienced the violence of the flood in a degree of intensity unknown elsewhere.

The space between Mrs Birst's mill and the reservoir is for a good way comparatively open, and here some good land had been completely

destroyed; but for two or three hundred yards below the reservoir the valley is very narrow, and there some extraordinary effects are observable. The flood, at its first outburst here, has exercised great force upon the sides of the valley, carrying off from the cliffs several huge blocks, which it has transported a good way down. Three of from five to seven tons' weight are spoken of as carried half a mile, and one of probably twenty tons is seen about a quarter of a mile below the place whence it evidently has been torn. These are prodigies to the rustic population, little accustomed to think of the dynamics of water, and totally ignorant of the deduction made in such circumstances from the specific gravity of any heavy mass carried by it. Geologists, who have looked into the great question of erratic blocks, are less apt to be startled by such phenomena.

Some of these gentlemen will, I suspect, find the transport of blocks at Holmfirth less remarkable than they could have desired. It is well known that, while most of them ascribe the travelling of boulders to the working of ice in former times, one or two persist in thinking that water may have done it all. The present president of the Geological Society has endeavoured to shew, by mathematical reasonings chiefly, that the blocks of Shap Fell granite, scattered to the south and east in Yorkshire, may have been carried there by a retreating wave, on the mountain being suddenly raised out of the sea. Now here is a moving flood, of greater force than any retreating wave could well be; and yet we see that it does not carry similar blocks a hundredth part of the way to which those masses of Shap Fell have been transported, even although their course was all downwards moreover—a different case from that of many of the Shap boulders, which are found to have breasted considerable heights before resting where they now are.

At length, after a toilsome walk along the rough surface of the *débris*, we reached the place whence this wonderful flood had burst. We found on each side of the valley a huge lump of the embankment remaining, while a vast gulf yawned between. This was somewhat different from what we expected; for we had seen it stated in the newspapers, that the whole was swept away. So far from this being the case, fully half of the entire mass remains, including portions of that central depression which has been spoken of. There is more importance in remarking this fact than may at first sight appear. In the investigation of the mysterious subject of the Parallel Roads

of Glenroy, one theory has been extensively embraced—that they were produced by a lake, which has since burst its bounds and been discharged. It has been asked: Where was the dam that retained this lake? and should we not expect, if there was any such dam, that it could not be wholly swept away? Would not fragments of it be found at the sides of the valley—the breaking down of the centre being sufficient to allow the waters to pass out? When we look at the masses left on each side of the Bilberry embankment, we see the force and pertinence of these queries, and must admit that the lake theory is so far weakened. In the bottom of the breach, a tiny rill is now seen making its exit—the same stream which cumulatively took so formidable a shape a few months ago. For a mile up the valley, we see traces of the ground having been submerged. Immediately within the embankment, on the right side of the streamlet, is the empty tower or by-wash, that dismal monument of culpable negligence. We gazed on it with a strange feeling, thinking how easy it would have been to demolish two or three yards of it, so as to allow an innocuous outlet to the pent-up waters. When we had satisfied our curiosity, we commenced a toilsome march across the hills to a valley, in which there has lately been formed a series of embankments for the saving up of water for the supply of the inhabitants of Manchester. About six in the evening, we reached a public-house called the 'Solitary Shepherd,' where we had tea and a rest; after which, a short walk in the dusk of the evening brought us to a station of the Manchester and Sheffield Railway, by which we were speedily replaced in Manchester, thus accomplishing our very interesting excursion in about ten hours.

My final reflections on what we had seen were of a mixed order. Viewing the inundation as a calamity which might have been avoided by a simple and inexpensive precaution, one could not but feel that it stood up as a sore charge against human wisdom. That so huge a danger should have been treated so lightly; that men should have gone on squabbling about who should pay a mere trifle of money, when such large interests and so many lives were threatened by its non-expenditure, certainly presents our mercantile *laissez-faire* system in a most disagreeable light. But, then, view the other side. When once the calamity had taken place, and the idea of the consequent extensive suffering had got abroad amongst the public, thousands of pounds came pouring in for the relief of that suffering. The large sum of L.60,000 was collected for the unfortunates; and it is an

undoubted, though surprising fact, that the collectors had at last to intimate that they required no more. It is thus that human nature often appears unworthy and contemptible when contemplated with regard to some isolated circumstance, as misanthropes, poets, and such like, are apt to regard it. But take it in wider relations, take it in the totality of its action, and the lineaments of its divine origin and inherent dignity are sure to shine out.

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# REMINISCENCES OF AN ATTORNEY.

## THE INCENDIARY.

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I knew James Dutton, as I shall call him, at an early period of life, when my present scanty locks of iron-gray were thick and dark, my now pale and furrowed cheeks were fresh and ruddy, like his own. Time, circumstance, and natural bent of mind, have done their work on both of us; and if his course of life has been less equable than mine, it has been chiefly so because the original impulse, the first start on the great journey, upon which so much depends, was directed by wiser heads in my case than in his. We were school-fellows for a considerable time; and if I acquired—as I certainly did—a larger stock of knowledge than he, it was by no means from any superior capacity on my part, but that his mind was bent on other pursuits. He was a born Nimrod, and his father encouraged this propensity from the earliest moment that his darling and only son could sit a pony, or handle a light fowling-piece. Dutton, senior, was one of a then large class of persons, whom Cobbett used to call bull-frog farmers; men who, finding themselves daily increasing in wealth by the operation of circumstances they neither created nor could insure or control—namely, a rapidly increasing manufacturing population, and tremendous war-prices for their produce—acted as if the chance-blown prosperity they enjoyed was the result of their own forethought, skill, and energy, and therefore, humanly speaking, indestructible. James Dutton was, consequently, denied nothing—not even the luxury of neglecting his own education; and he availed himself of the lamentable privilege to a great extent. It was, however, a remarkable feature in the lad's character, that whatever he himself deemed essential should be done, no amount of indulgence, no love of sport or dissipation, could divert him from thoroughly accomplishing. Thus he saw clearly, that even in the life—that of a sportsman-farmer—he had chalked out for himself, it was indispensably necessary that a certain quantum of educational power should be attained; and so he really acquired a

knowledge of reading, writing, and spelling, and then withdrew from school to more congenial avocations.

I frequently met James Dutton in after-years; but some nine or ten months had passed since I had last seen him, when I was directed by the chief partner in the firm to which Flint and I subsequently succeeded, to take coach for Romford, Essex, in order to ascertain from a witness there what kind of evidence we might expect him to give in a trial to come off in the then Hilary term, at Westminster Hall. It was the first week in January: the weather was bitterly cold; and I experienced an intense satisfaction when, after despatching the business I had come upon, I found myself in the long dining-room of the chief market-inn, where two blazing fires shed a ruddy, cheerful light over the snow-white damask table-cloth, bright glasses, decanters, and other preparatives for the farmers' market-dinner. Prices had ruled high that day; wheat had reached L.30 a load; and the numerous groups of hearty, stalwart yeomen present were in high glee, crowing and exulting alike over their full pockets and the news—of which the papers were just then full—of the burning of Moscow, and the flight and ruin of Bonaparte's army. James Dutton was in the room, but not, I observed, in his usual flow of animal spirits. The crape round his hat might, I thought, account for that; and as he did not see me, I accosted him with an inquiry after his health, and the reason of his being in mourning. He received me very cordially, and in an instant cast off the abstracted manner I had noticed. His father, he informed me, was gone—had died about seven months previously, and he was alone now at Ash Farm—why didn't I run down there to see him sometimes, &c.? Our conversation was interrupted by a summons to dinner, very cheerfully complied with; and we both—at least I can answer for myself—did ample justice to a more than usually capital dinner, even in those capital old market-dinner times. We were very jolly afterwards, and amazingly triumphant over the frost-bitten, snow-buried soldier-banditti that had so long lorded it over continental Europe. Dutton did not partake of the general hilarity. There was a sneer upon his lip during the whole time, which, however, found no expression in words.

'How quiet you are, James Dutton!' cried a loud voice from out the dense smoke-cloud that by this time completely enveloped us. On looking towards the spot from whence the ringing tones came, a jolly, round face—like the

sun as seen through a London fog—gleamed redly dull from out the thick and choking atmosphere.

'Everybody,' rejoined Dutton, 'hasn't had the luck to sell two hundred quarters of wheat at to-day's price, as you have, Tom Southall.'

'That's true, my boy,' returned Master Southall, sending, in the plenitude of his satisfaction, a jet of smoke towards us with astonishing force. 'And, I say, Jem, I'll tell ee what I'll do; I'll clap on ten guineas more upon what I offered for the brown mare.'

'Done! She's yours, Tom, then, for ninety guineas!'

'Gie's your hand upon it!' cried Tom Southall, jumping up from his chair, and stretching a fist as big as a leg of mutton—well, say lamb—over the table. 'And here—here,' he added, with an exultant chuckle, as he extricated a swollen canvas-bag from his pocket—'here's the dibs at once.'

This transaction excited a great deal of surprise at our part of the table; and Dutton was rigorously cross-questioned as to his reason for parting with his favourite hunting mare.

'The truth is, friends,' said Dutton at last, 'I mean to give up farming, and'——

'Gie up farmin'!' broke in half-a-dozen voices. 'Lord!'

'Yes; I don't like it. I shall buy a commission in the army. There'll be a chance against Boney, now; and it's a life I'm fit for.'

The farmers looked completely agape at this announcement; but making nothing of it, after silently staring at Dutton and each other, with their pipes in their hands and not in their mouths, till they had gone out, stretched their heads simultaneously across the table towards the candles, relit their pipes, and smoked on as before.

'Then, perhaps, Mr Dutton,' said a young man in a smartly-cut velveteen coat with mother-of-pearl buttons, who had hastily left his seat further down



the table—'perhaps you will sell the double Manton, and Fanny and Slut?'

'Yes; at a price.'

Prices were named; I forget now the exact sums, but enormous prices, I thought, for the gun and the dogs, Fanny and Slut. The bargain was eagerly concluded, and the money paid at once. Possibly the buyer had a vague notion, that a portion of the vender's skill might come to him with his purchases.

'You be in 'arnest, then, in this fool's business, James Dutton,' observed a farmer gravely. 'I be sorry for thee; but as I s'pose the lease of Ash Farm will be parted with; why—— John, waiter, tell Master Hurst at the top of the table yonder, to come this way.'

Master Hurst, a well-to-do, highly respectable-looking, and rather elderly man, came in obedience to the summons, and after a few words in an undertone with the friend that had sent for him, said: 'Is this true, James Dutton?'

'It is true that the lease and stock of Ash Farm are to be sold—at a price. You, I believe, are in want of such a concern for the young couple, just married.'

'Well, I don't say I might not be a customer, if the price were reasonable.'

'Let us step into a private room, then,' said Dutton rising. 'This is not a place for business of that kind. Sharp,' he added, *sotto voce*, 'come with us; I may want you.'

I had listened to all this with a kind of stupid wonderment, and I now, mechanically as it were, got up and accompanied the party to another room.

The matter was soon settled. Five hundred pounds for the lease—ten years unexpired—of Ash Farm, about eleven hundred acres, and the stock, implements; the ploughing, sowing, &c. already performed, to be paid for at a valuation based on present prices. I drew out the agreement in form, it was signed in duplicate, a large sum was paid down as deposit, and Mr Hurst with his friend withdrew.

'Well,' I said, taking a glass of port from a bottle Dutton had just ordered in—'here's fortune in your new career; but as I am a living man, I can't understand what you can be thinking about.'

'You haven't read the newspapers?'

'O yes, I have! Victory! Glory! March to Paris! and all that sort of thing. Very fine, I daresay; but rubbish, moonshine, I call it, if purchased by the abandonment of the useful, comfortable, joyous life of a prosperous yeoman.'

'Is that all you have seen in the papers?'

'Not much else. What, besides, have you found in them?'

'Wheat, at ten or eleven pounds a load—less perhaps—other produce in proportion.'

'Ha!'

'I see further, Sharp, than you bookmen do, in some matters. Boney's done for; that to me is quite plain, and earlier than I thought likely; although I, of course, as well as every other man with a head instead of a turnip on his shoulders, knew such a raw-head-and-bloody-bones as that must sooner or later come to the dogs. And as I also know what agricultural prices were *before* the war, I can calculate without the aid of vulgar fractions, which, by the by, I never reached, what they'll be when it's over, and the thundering expenditure now going on is stopped. In two or three weeks, people generally will get a dim notion of all this; and I sell, therefore, whilst I can, at top prices.'

The shrewdness of the calculation struck me at once. 'You will take another farm when one can be had on easier terms than now, I suppose?'

'Yes; if I can manage it. And I *will* manage it. Between ourselves, after all the old man's debts are paid, I shall only have about nine or ten hundred pounds to the good, even by selling at the present tremendous rates; so it was time, you see, I pulled up, and rubbed the fog out of my eyes a bit.'

And, hark ye, Master Sharp!' he added, as we rose and shook hands with each other—I have now done *playing* with the world—it's a place of work and business; and I'll do my share of it so effectually, that my children, if I have any, shall, if I do not, reach the class of landed gentry; and this you'll find, for all your sneering, will come about all the more easily that neither they nor their father will be encumbered with much educational lumber. Good-by.'

I did not again see my old school-fellow till the change he had predicted had thoroughly come to pass. Farms were everywhere to let, and a general cry to parliament for aid rang through the land. Dutton called at the office upon business, accompanied by a young woman of remarkable personal comeliness, but, as a very few sentences betrayed, little or no education in the conventional sense of the word. She was the daughter of a farmer, whom—it was no fault of hers—a change of times had not found in a better condition for weathering them. Anne Mosely, in fact, was a thoroughly industrious, clever farm economist. The instant Dutton had secured an eligible farm, at his own price and conditions, he married her; and now, on the third day after the wedding, he had brought me the draft of lease for examination.

'You are not afraid, then,' I remarked, 'of taking a farm in these bad times?'

'Not I—at a price. We mean to *rough* it, Mr Sharp,' he added gaily. 'And, let me tell you, that those who will stoop to do that—I mean, take their coats off, tuck up their sleeves, and fling appearances to the winds—may, and will, if they understand their business, and have got their heads screwed on right, do better here than in any of the uncleared countries they talk so much about. You know what I told you down at Romford. Well, we'll manage that before our hair is gray, depend upon it, bad as the times may be—won't we, Nance?'

'We'll try, Jem,' was the smiling response.

They left the draft for examination. It was found to be correctly drawn. Two or three days afterwards, the deeds were executed, and James Dutton was placed in possession. The farm, a capital one, was in Essex.

His hopes were fully realised as to money-making, at all events. He and his wife rose early, sat up late, ate the bread of carefulness, and altogether displayed such persevering energy, that only about six or seven years had passed before the Duttons were accounted a rich and prosperous family. They had one child only—a daughter. The mother, Mrs Dutton, died when this child was about twelve years of age; and Anne Dutton became more than ever the apple of her father's eye. The business of the farm went steadily on in its accustomed track; each succeeding year found James Dutton growing in wealth and importance; and his daughter in sparkling, catching comeliness—although certainly not in the refinement of manner which gives a quickening life and grace to personal symmetry and beauty. James Dutton remained firm in his theory of the worthlessness of education beyond what, in a narrow acceptation of the term, was absolutely 'necessary;' and Anne Dutton, although now heiress to very considerable wealth, knew only how to read, write, spell, cast accounts, and superintend the home-business of the farm. I saw a good deal of the Duttons about this time, my brother-in-law, Elsworthy, and his wife having taken up their abode within about half a mile of James Dutton's dwelling-house; and I ventured once or twice to remonstrate with the prosperous farmer upon the positive danger, with reference to his ambitious views, of not at least so far cultivating the intellect and taste of so attractive a maiden as his daughter, that sympathy on her part with the rude, unlettered clowns, with whom she necessarily came so much in contact, should be impossible. He laughed my hints to scorn. 'It is idleness—idleness alone,' he said, 'that puts love-fancies into girls' heads. Novel-reading, jingling at a pianoforte—merely other names for idleness—these are the parents of such follies. Anne Dutton, as mistress of this establishment, has her time fully and usefully occupied; and when the time comes, not far distant now, to establish her in marriage, she will wed into a family I wot of; and the Romford prophecy of which you remind me will be realised, in great part at least.'

He found, too late, his error. He hastily entered the office one morning, and although it was only five or six weeks since I had last seen him, the change in his then florid, prideful features was so striking and painful, as to cause me to fairly leap upon my feet with surprise.

'Good Heavens, Dutton!' I exclaimed, 'what is the matter? What has happened?'

'Nothing has happened, Mr Sharp,' he replied, 'but what you predicted, and which, had I not been the most conceited dolt in existence, I, too, must have foreseen. You know that good-looking, idle, and, I fear, irreclaimable young fellow, George Hamblin?'

'I have seen him once or twice. Has he not brought his father to the verge of a workhouse by low dissipation and extravagance?'

'Yes. Well, he is an accepted suitor for Anne Dutton's hand. No wonder that you start. She fancies herself hopelessly in love with him—— Nay, Sharp, hear me out. I have tried expostulation, threats, entreaties, locking her up; but it's useless. I shall kill the silly fool if I persist, and I have at length consented to the marriage; for I cannot see her die.' I began remonstrating upon the folly of yielding consent to so ruinous a marriage, on account of a few tears and hysterics, but Dutton stopped me peremptorily.

'It is useless talking,' he said. 'The die is cast; I have given my word. You would hardly recognise her, she is so altered. I did not know before,' added the strong, stern man, with trembling voice and glistening eyes, 'that she was so inextricably twined about my heart—my life!' It is difficult to estimate the bitterness of such a disappointment to a proud, aspiring man like Dutton. I pitied him sincerely, mistaken, if not blameworthy, as he had been.

'I have only myself to blame,' he presently resumed. 'A girl of cultivated taste and mind could not have bestowed a second thought on George Hamblin. But let's to business. I wish the marriage-settlement, and my will, to be so drawn, that every farthing received from me during my life, and after my death, shall be hers, and hers only; and so strictly and entirely secured, that she shall be without power to yield control over the slightest portion of it, should she be so minded.' I took down his instructions, and the necessary deeds were drawn in accordance with them. When the day for signing arrived, the bridegroom-elect demurred at first to the stringency of the provisions of the marriage-contract; but as upon this point Mr Dutton was found to be inflexible, the handsome, illiterate clown—he was little

better—gave up his scruples, the more readily as a life of assured idleness lay before him, from the virtual control he was sure to have over his wife's income. These were the thoughts which passed across his mind, I was quite sure, as taking the pen awkwardly in his hand, he affixed *his mark* to the marriage-deed. I reddened with shame, and the smothered groan which at the moment smote faintly on my ear, again brokenly confessed the miserable folly of the father in not having placed his beautiful child beyond all possibility of mental contact or communion with such a person. The marriage was shortly afterwards solemnised, but I did not wait to witness the ceremony.

The husband's promised good-behaviour did not long endure; ere two months of wedded life were past, he had fallen again into his old habits; and the wife, bitterly repentant of her folly, was fain to confess, that nothing but dread of her father's vengeance saved her from positive ill usage. It was altogether a wretched, unfortunate affair; and the intelligence—sad in itself—which reached me about a twelvemonth after the marriage, that the young mother had died in childbirth of her first-born, a girl, appeared to me rather a matter of rejoicing than of sorrow or regret. The shock to poor Dutton was, I understood, overwhelming for a time, and fears were entertained for his intellects. He recovered, however, and took charge of his grandchild, the father very willingly resigning the onerous burden.

My brother-in-law left James Dutton's neighbourhood for a distant part of the country about this period, and I saw nothing of the bereaved father for about five years, save only at two business interviews. The business upon which I had seen him, was the alteration of his will, by which all he might die possessed of was bequeathed to his darling Annie. His health, I was glad to find, was quite restored; and although now fifty years of age, the bright light of his young days sparkled once more in his keen glance. His youth was, he said, renewed in little Annie. He could even bear to speak, though still with remorseful emotion, of his own lost child. 'No fear, Sharp,' he said, 'that I make that terrible mistake again. Annie will fall in love, please God, with no unlettered, soulless booby! Her mind shall be elevated, beautiful, and pure, as her person—she is the image of her mother—promises to be charming and attractive. You must come and see her.' I promised to do so; and he went his way. At one of these interviews—the

first it must have been—I made a chance inquiry for his son-in-law, Hamblin. As the name passed my lips, a look of hate and rage flashed out of his burning eyes. I did not utter another word, nor did he; and we separated in silence.

It was evening, and I was returning in a gig from a rather long journey into the country, when I called, in redemption of my promise, upon James Dutton. Annie was really, I found, an engaging, pretty, blue-eyed, golden-haired child; and I was not so much surprised at her grandfather's doting fondness—a fondness entirely reciprocated, it seemed, by the little girl. It struck me, albeit, that it was a perilous thing for a man of Dutton's vehement, fiery nature to stake again, as he evidently had done, his all of life and happiness upon one frail existence. An illustration of my thought or fear occurred just after we had finished tea. A knock was heard at the outer-door, and presently a man's voice, in quarrelling, drunken remonstrance with the servant who opened it. The same deadly scowl I had seen sweep over Dutton's countenance upon the mention of Hamblin's name, again gleamed darkly there; and finding, after a moment or two, that the intruder would not be denied, the master of the house gently removed Annie from his knee, and strode out of the room.

'Follow grandpapa,' whispered Mrs Rivers, a highly respectable widow of about forty years of age, whom Mr Dutton had engaged at a high salary to superintend Annie's education. The child went out, and Mrs Rivers, addressing me, said in a low voice: 'Her presence will prevent violence; but it is a sad affair.' She then informed me that Hamblin, to whom Mr Dutton allowed a hundred a year, having become aware of the grandfather's extreme fondness for Annie, systematically worked that knowledge for his own sordid ends, and preluded every fresh attack upon Mr Dutton's purse by a threat to reclaim the child. 'It is not the money,' remarked Mrs Rivers in conclusion, 'that Mr Dutton cares so much for, but the thought that he holds Annie by the sufferance of that wretched man, goads him at times almost to insanity.'

'Would not the fellow waive his claim for a settled increase of his annuity?'

'No; that has been offered to the extent of three hundred a year; but Hamblin refuses, partly from the pleasure of keeping such a man as Mr

Dutton in his power, partly because he knows that the last shilling would be parted with rather than the child. It is a very unfortunate business, and I often fear will terminate badly.' The loud but indistinct wrangling without ceased after awhile, and I heard a key turn stiffly in a lock. 'The usual conclusion of these scenes,' said Mrs Rivers. 'Another draft upon his strong-box will purchase Mr Dutton a respite as long as the money lasts.' I could hardly look at James Dutton when he re-entered the room. There was that in his countenance which I do not like to read in the faces of my friends. He was silent for several minutes; at last he said quickly, sternly: 'Is there no instrument, Mr Sharp, in all the enginery of law, that can defeat a worthless villain's legal claim to his child?'

'None; except, perhaps, a commission of lunacy, or'——

'Tush! tush!' interrupted Dutton; 'the fellow has no wits to lose. That being so—— But let us talk of something else.' We did so, but on his part very incoherently, and I soon bade him good-night.

This was December, and it was in February the following year that Dutton again called at our place of business. There was a strange, stern, iron meaning in his face. 'I am in a great hurry,' he said, 'and I have only called to say, that I shall be glad if you will run over to the farm to-morrow on a matter of business. You have seen, perhaps, in the paper, that my dwelling-house took fire the night before last. You have not? Well, it is upon that I would consult you. Will you come?' I agreed to do so, and he withdrew.

The fire had not, I found, done much injury. It had commenced in a kind of miscellaneous store-room; but the origin of the fire appeared to me, as it did to the police-officers that had been summoned, perfectly unaccountable. 'Had it not been discovered in time, and extinguished,' I observed to Mrs Rivers, 'you would all have been burned in your beds.'

'Why, no,' replied that lady, with some strangeness of manner. 'On the night of the fire, Annie and I slept at Mr Elsworthy's' (I have omitted to notice, that my brother-in-law and family had returned to their old residence), 'and Mr Dutton remained in London, whither he had gone to see the play.'

'But the servants might have perished?'



'No. A whim, apparently, has lately seized Mr Dutton, that no servant or labourer shall sleep under the same roof with himself; and those new outhouses, where their bedrooms are placed are, you see, completely detached, and are indeed, as regards this dwelling, made fire-proof.'

At this moment Mr Dutton appeared, and interrupted our conversation. He took me aside. 'Well,' he said, 'to what conclusion have you come? The work of an incendiary, is it not? Somebody, too, that knows I am not insured'——

'Not insured!'

'No; not for this dwelling-house. I did not renew the policy some months ago.'

'Then,' I jestingly remarked, 'you, at all events, are safe from any accusation of having set fire to your premises with the intent to defraud the insurers.'

'To be sure—to be sure, I am,' he rejoined with quick earnestness, as if taking my remark seriously. 'That is quite certain. Some one, I am pretty sure it must be,' he presently added, 'that owes me a grudge—with whom I have quarrelled, eh?'

'It may be so, certainly.'

'It *must* be so. And what, Mr Sharp, is the highest penalty for the crime of incendiarism?'

'By the recent change in the law, transportation only; unless, indeed, loss of human life occur in consequence of the felonious act; in which case, the English law construes the offence to be wilful murder, although the incendiary may not have intended the death or injury of any person.'

'I see. But here there could have been no loss of life.'

'There might have been, had not you, Mrs Rivers, and Annie, chanced to sleep out of the house.'

'True—true—a diabolical villain no doubt. But we'll ferret him out yet. You are a keen hand, Mr Sharp, and will assist, I know. Yes, yes—it's some fellow that hates me—that I perhaps hate and loathe'—he added with sudden gnashing fierceness, and striking his hand with furious violence on the table—'as I do a spotted toad!'

I hardly recognised James Dutton in this fitful, disjointed talk, and as there was really nothing to be done or to be inquired into, I soon went away.

'Only one week's interval,' I hastily remarked to Mr Flint one morning after glancing at the newspaper, 'and another fire at Dutton's farmhouse!'

'The deuce! He is in the luck of it apparently,' replied Flint, without looking up from his employment. My partner knew Dutton only by sight.

The following morning, I received a note from Mrs Rivers. She wished to see me immediately on a matter of great importance. I hastened to Mr Dutton's, and found, on arriving there, that George Hamblin was in custody, and undergoing an examination, at no great distance off, before two county magistrates, on the charge of having fired Mr Dutton's premises. The chief evidence was, that Hamblin had been seen lurking about the place just before the flames broke out, and that near the window where an incendiary might have entered there were found portions of several lucifer-matches, of a particular make, and corresponding to a number found in Hamblin's bedroom. To this Hamblin replied, that he had come to the house by Mr Dutton's invitation, but found nobody there. This, however, was vehemently denied by Mr Dutton. He had made no appointment with Hamblin to meet at his, Dutton's, house. How should he, purposing as he did to be in London at the time? With respect to the lucifer-matches, Hamblin said he had purchased them of a mendicant, and that Mr Dutton saw him do so. This also was denied. It was further proved, that Hamblin, when in drink, had often said he would ruin Dutton before he died. Finally, the magistrates, though with some hesitation, decided that there was hardly sufficient evidence to warrant them in committing the prisoner for trial, and he was discharged, much to the rage and indignation of the prosecutor.

Subsequently, Mrs Rivers and I had a long private conference. She and the child had again slept at Elsworthy's on the night of the fire, and Dutton in

London. 'His excuse is,' said Mrs Rivers, 'that he cannot permit us to sleep here unprotected by his presence.' We both arrived at the same conclusion, and at last agreed upon what should be done, attempted rather, and that without delay.

Just before taking leave of Mr Dutton, who was in an exceedingly excited state, I said: 'By the by, Dutton, you have promised to dine with me on some early day. Let it be next Tuesday. I shall have one or two bachelor friends, and we can give you a shake-down for the night.'

'Next Tuesday?' said he quickly. 'At what hour do you dine?'

'At six. Not a half-moment later.'

'Good! I will be with you.' We then shook hands, and parted.

The dinner would have been without interest to me, had not a note previously arrived from Mrs Rivers, stating that she and Annie were again to sleep that night at Elsworthy's. This promised results.

James Dutton, who rode into town, was punctual, and, as always of late, flurried, excited, nervous—not, in fact, it appeared to me precisely in his right mind. The dinner passed off as dinners usually do, and the after-proceedings went on very comfortably till about half-past nine o'clock, when Dutton's perturbation, increased perhaps by the considerable quantity of wine he had swallowed, not drunk, became, it was apparent to everybody, almost uncontrollable. He rose—purposeless it seemed—sat down again—drew out his watch almost every minute, and answered remarks addressed to him in the wildest manner. The decisive moment was, I saw, arrived, and at a gesture of mine, Elsworthy, who was in my confidence, addressed Dutton. 'By the way, Dutton, about Mrs Rivers and Annie. I forgot to tell you of it before.'

The restless man was on his feet in an instant, and glaring with fiery eagerness at the speaker.

'What! what!' he cried with explosive quickness—'what about Annie? Death and fury!—speak! will you?'

'Don't alarm yourself, my good fellow. It's nothing of consequence. You brought Annie and her governess, about an hour before I started, to sleep at our house'——

'Yes—yes,' gasped Dutton, white as death, and every fibre of his body shaking with terrible dread. 'Yes—well, well, go on. Thunder and lightning! out with it, will you?'

'Unfortunately, two female cousins arrived soon after you went away, and I was obliged to escort Annie and Mrs Rivers home again.' A wild shriek—yell is perhaps the more appropriate expression—burst from the conscience and fear-stricken man. Another instant, and he had torn his watch from the fob, glanced at it with dilated eyes, dashed it on the table, and was rushing madly towards the door, vainly withstood by Elsworthy, who feared we had gone too far.

'Out of the way!' screamed the madman. 'Let go, or I'll dash you to atoms!' Suiting the action to the threat, he hurled my brother-in-law against the wall with stunning force, and rushed on, shouting incoherently: 'My horse! There is time yet! Tom Edwards, my horse!'

Tom Edwards was luckily at hand, and although mightily surprised at the sudden uproar, which he attributed to Mr Dutton being in drink, mechanically assisted to saddle, bridle, and bring out the roan mare; and before I could reach the stables, Dutton's foot was in the stirrup. I shouted 'Stop' as loudly as I could, but the excited horseman did not heed, perhaps not hear me: and away he went, at a tremendous speed, hatless, and his long gray-tinted hair streaming in the wind. It was absolutely necessary to follow. I therefore directed Elsworthy's horse, a much swifter and more peaceful animal than Dutton's, to be brought out; and as soon as I got into the high country road, I too dashed along at a rate much too headlong to be altogether pleasant. The evening was clear and bright, and I now and then caught a distant sight of Dutton, who was going at a frantic pace across the country, and putting his horse at leaps that no man in his senses would have attempted. I kept the high-road, and we had thus ridden about half an hour perhaps, when a bright flame about a mile distant, as the crow flies, shot suddenly forth, strongly relieved against a mass of dark wood just beyond it. I knew it to be Dutton's house, even without the confirmation given by

the frenzied shout which at the same moment arose on my left hand. It was from Dutton. His horse had been *staked*, in an effort to clear a high fence, and he was hurrying desperately along on foot. I tried to make him hear me, or to reach him, but found I could do neither: his own wild cries and imprecations drowned my voice, and there were impassable fences between the high-road and the fields across which he madly hasted.

The flames were swift this time, and defied the efforts of the servants and husbandmen who had come to the rescue, to stay, much less to quell them. Eagerly as I rode, Dutton arrived before the blazing pile at nearly the same moment as myself, and even as he fiercely struggled with two or three men, who strove by main force to prevent him from rushing into the flames, only to meet with certain death, the roof and floors of the building fell in with a sudden crash. He believed that all was over with the child, and again hurling forth the wild despairing cry I had twice before heard that evening, he fell down, as if smitten by lightning, upon the hard frosty road.

It was many days ere the unhappy, sinful man recovered his senses, many weeks before he was restored to his accustomed health. Very cautiously had the intelligence been communicated to him, that Annie had not met the terrible fate, the image of which had incessantly pursued him through his fevered dreams. He was a deeply grateful, and, I believe, a penitent and altogether changed man. He purchased, through my agency, a valuable farm in a distant county, in order to be out of the way, not only of Hamblin, on whom he settled two hundred a year, but of others, myself included, who knew or suspected him of the foul intention he had conceived against his son-in-law, and which, but for Mrs Rivers, would, on the last occasion, have been in all probability successful, so cunningly had the evidence of circumstances been devised. 'I have been,' said James Dutton to me at the last interview I had with him, 'all my life an overweening self-confident fool. At Romford, I boasted to you that my children should ally themselves with the landed gentry of the country, and see the result! The future, please God, shall find me in my duty—mindful only of that, and content, whilst so acting, with whatever shall befall me or mine.'

Dutton continues to prosper in the world; Hamblin died several years ago of delirium tremens; and Annie, I hear, *will* in all probability marry into the

squirearchy of the country. All this is not perhaps what is called poetical justice, but my experience has been with the actual, not the ideal world.

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# MEMORIALS OF THE DODO.

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Among the thousand-and-one marvels displayed in the far-famed Palace of Crystal during part of the last ever-memorable year, not the least puzzling to the majority of visitors, was an object resembling a stuffed bird more than any other production of art or nature, but very unlike any bird previously observed by the wondering spectators in either museum or menagerie, or even on the painted panels that emblazon the crude and extravagant conceptions of mediæval heraldry. In the catalogue, the really ingenious piece of workmanship was entitled a 'Life-size model of the dodo'—a name, our readers know, appertaining to a now extinct bird, the very existence of which was at one time denied by shrewd men and good naturalists. Perhaps the following history of this curious creature, from its first to its last appearance before the eyes of men, will not be considered devoid of interest.

In the year 1598, a division of a Dutch squadron on its way to Bantam, rediscovered what was then called the island of Cerne; and a boat's crew having been sent ashore to reconnoitre, returned with nine great birds, a number of smaller ones, and the welcome intelligence of a secure and convenient harbour. Those nine great birds were the first of the doomed dodo race that ever came in contact with their destined destroyer, man; at least, this is undoubtedly their first appearance on record. The exact date of such an event is note-worthy: it occurred on the 18th of May. De Warwijk, the Dutch admiral, brought his ships into the harbour; and finding no traces of man—the birds being so unused to his presence, that they suffered themselves to be caught by hand—took formal possession of the island, changing its name to Mauritius, in honour of Prince Maurice, then Stadtholder of Holland. Immense tortoises, delicious fish, thousands of turtledoves, and dodos *à discrétion*, regaled the half-starved and scurvy-stricken seamen. The name dodo, however, had not then been given. Warwick's men, revelling in the luxuries of this virgin isle, became fastidious. Finding, after a hearty meal on the newly-discovered bird, that

its extreme fatness disagreed with them, they gave it the name of *walghvogel*<sup>[1]</sup>—the nausea-causing bird. With our own experience—and that is somewhat extensive—of sailors in general, and Dutch ones in particular, we must infer that these dodos were very, very fat, indeed. A narrative of this voyage<sup>[2]</sup> was published in Dutch at Amsterdam in 1601, went through many editions, and has been translated into various languages. The work contains an engraving, representing the landing-place at the Mauritius; the carpenters, coopers, and blacksmiths, busy at work; the preacher and his orderly congregation; while tortoises, a dodo, and other animals, wander about, heedless of the presence of man. This is the first engraving of the dodo, and, judging from more pictures of greater pretension, by no means a bad likeness; indeed, the whole sketch bears strong evidence of its having been taken from nature. In the letter-press, the *walghvogel* is described as a large bird, the size of a swan, with a huge head furnished with a kind of hood; and in lieu of wings, having three or four small pen-feathers, the tail consisting of four or five small curled feathers of a gray colour.

De Bry, an engraver of considerable eminence, and a bookseller at Frankfort-on-the-Maine, being in England in 1587, was induced by our famous compiler, Hakluyt, to commence the publication of an illustrated series of voyages, which, after his death, was continued by his sons. Amongst bibliographers, this compilation is well known as the *Collection of Great and Little Voyages*. The volumes comprising the 'little voyages,' relating exclusively to the East, are entitled *Indiæ Orientalis*; they were issued in parts, and their period of publication extended from 1598 to 1624. The *walghvogel* is merely mentioned, but an engraving gives a fanciful representation of the doings of another Dutch crew on the island. Two gallants, elaborately attired, are represented riding on a tortoise; while ten others, seated in a tortoise's shell, are holding a grand symposium. Three birds are depicted in this plate, which the letter-press says are *walghvogels*, but which our eyes tell us are cassowaries, then termed *emeus*. It is evident, then, that De Bry had not, at that time, seen a sketch or description of the dodo: if he had, he would not thus have confounded it with the cassowary. Moreover, in the letter-press explanatory of the engraving, it is stated that a living *walghvogel* had been brought to Holland, which clearly proves that he had erroneously confounded the two birds; for a living cassowary, even



at that early date, had actually been transported thither. But though there can be little doubt, that one or more living dodos were subsequently brought to Europe, it is certain that such an event did not take place till after L'Ecluse wrote, in 1605. About the same time that De Bry published this *fourth* part of *Indiæ Orientalis*, the Dutch work appeared containing the account of the voyages of the whole eight ships; and then De Bry, in his *fifth* part, which came out later in the same year, was enabled to give a correct representation of the dodo, and a complete account of the voyages of the whole squadron. We have been more precise on this part of our subject than might seem necessary; but by being so, we have smoothed over an inequality that has been a stumbling-block to almost all previous writers on the dodo.

L'Ecluse, professor of botany at Leyden, one of the greatest naturalists of his age, published his *Exoticorum* in 1605. In it he gives an engraved likeness and description of the dodo, which he obtained from persons who had sailed in De Warwijk's fleet, stating that he had himself seen only the leg of the bird—a sure proof that no live specimen had, at that time, been brought to Holland.

Passing over the visits to the isles of four old Dutch navigators, who all describe the dodo under different names, we come to the quaint old traveller, Sir Thomas Herbert, who touched at the Mauritius in 1627. In his *Relation of some Yeare's Travaile*, he thus describes the bird:—"The dodo; a bird the Dutch call walghvogel or dod eersen; her body is round and fat, which occasions the slow pace, or that her corpulencie; and so great as few of them weigh less than fifty pound: better to the eye than stomach: greasy appetites may perhaps commend them, but to the indifferently curious in nourishment, prove offensive. Let's take her picture: her visage darts forth melancholy, as if sensible of Nature's injurie in framing so great and massie a body to be directed by such small and complementall wings, as are unable to hoise her from the ground; serving only to prove her a bird, which otherwise might be doubted of. Her head is variously drest, the one-half hooded with downy blackish feathers; the other perfectly naked, of a whitish hue, as if a transparent lawne had covered it. Her bill is very howked, and bends downwards; the thrill or breathing-place is in the midst of it, from which part to the end the colour is a light green mixed with a

pale yellowe; her eyes be round and small, and bright as diamonds; her clothing is of finest downe, such as you see on goslings. Her trayne is (like a China beard) of three or four short feathers; her legs thick, black, and strong; her tallons or pounces sharp; her stomach fiery hot, so as she easily can digest stones.'

As a 'China beard' consists of only a few hairs under the chin, the above simile is correct; but in the French edition of these travels, the translator erroneously rendered the words *oiseau de Chine*, Chinese bird, and subsequently, a celebrated French savant raised a magnificent hypothetical edifice on the basis of the mistranslation.

Herbert was the first who used the word dodo as the name of this bird, stating it to be derived from the Portuguese *doudo*, a simpleton; but as he is generally somewhat wild and vague in his etymologies, and as we have no intelligence whatever of the dodo through the Portuguese, we may safely conclude that the name is of Dutch derivation. In the old black-letter Dutch and English dictionary now before us, we find the word *dodoor* translated a humdrum, which, Dr Johnson tells us, means 'a stupid person.' Now, if the name be derived from the bird's simplicity, the Dutch *dodoor* is as near the mark as the Portuguese *doudo*. But it may be that the name was given on account of the peculiar form of the bird, and not in illusion to its mental capacity; and, consequently, even *dodoor* may not be the true origin. We more than suspect that it is really derived from a vulgar, compound epithet, used by Dutch seamen to denote an awkward, clumsily-formed, inactive person. This inquiry, however, is beyond our humble powers, and should be prosecuted by some learned professor—such, for instance, as Jonathan Oldbuck's friend, Dr Heavysterne, of the Low Countries.

We next hear of the dodo, in a curiously indirect manner, through an uneducated French adventurer named Cauche, who passed several years in Madagascar and the adjacent islands. His narrative, edited by one Morissot, an *avocat*, was published in 1651, and created great interest in France. In 1638, he was at the Mauritius, and there saw a bird which he describes under the name of the bird of Nazareth—*oiseau de Nazaret*—so termed, as he states, from its being found on the island of Nazareth, which lies to the northward of the Mauritius. The description is an accurate one of the dodo,

with the exception of two particulars—one, as to the number and position of the toes; the other, as to the creature having no tongue—a prevalent opinion then amongst the vulgar with respect to several other birds. Though there is no record of this bird of Nazareth having been seen by any one but Cauche, yet, ever since, his phantom-like picture has skulked in the obscurity, adding to the mystery which enveloped the dodo. Time, however, has now exorcised it. There never was a bird of Nazareth. What Cauche saw was undoubtedly a dodo; and his errors of description are what any person, not a naturalist, might commit. *Oiseau de Nazaret* is simply a corruption of *oiseau de nausée*—the original French name of the dodo, a literal translation of the original Dutch walghvogel. It is a curious coincidence, that as the bird of Nazareth has been found in books only, so the island of Nazareth has been found only on paper. At first, it appeared quite a respectable island; as maritime discovery progressed, it degenerated to a reef, and from that to a shoal; till at last, expunged from the more correct charts of modern hydrographers, it no longer can boast of a local habitation or a name.

About the same time that Cauche was at the Mauritius, the citizens of London were gratified by the sight of a living dodo. Of this very interesting event, there is only one solitary record at present known, but it is an authentic one. In a manuscript commentary on Sir Thomas Browne's *Vulgar Errors*—preserved in the British Museum—written by Sir Hamon L'Estrange, father of the more celebrated Sir Roger, there occurs the following passage:—

'About 1638, as I walked London streets, I [\[3\]](#) the picture of a strange fowle hung out upon a cloth [\[3\]](#)vas, and myselfe, with one or two more then in company, went in to see it. It was kept in a chamber, and was somewhat bigger than the largest turkey-cock, and so legged and footed, but stouter and thicker, and of a more erect shape, coloured before like the breast of a young cock-fesan, and on the back of a dunne or deare colour. The keeper called it a dodo; and in the end of a chymney in the chamber there lay a heap of large pebble-stones, whereof hee gave it many in our sight, some as big as nutmegs; and the keeper told us shee eats them (conducing to digestion); and though I remember not how farr the keeper was questioned therein, yet I am confident that afterwards she cast them all againe.'

We next, in order of time, come to the famous Tradescant dodo. When or where the Tradescants procured it, is unknown; it is first mentioned in the catalogue of their museum, published by the surviving Tradescant, in 1656, as 'a dodar from the island Mauritius; it is not able to flie, being so big.' We shall presently have occasion to detail the subsequent history of this interesting specimen.

The last notice of the dodo's existence is found in a manuscript journal—in the Sloane Collection—kept by a 'Mr Ben. Harry,' who was chief officer of the English ship *Berkley Castle*, on a voyage to and from India in 1679. It appears that, the ship becoming leaky on their return voyage, they 'made for the Marushes,' where they repaired the vessel, and landed and dried the cargo. At this point of their proceedings, we shall let this intelligent mariner speak for himself: 'Now, having a little respitt, I will make a little description of the island, ffirst of its producks, then of its parts: ffirst, of all winged and feathered ffowle, the less passant are dodos, whose fflesh is very hard. The Dutch, pleading a property in this island because of their settlement, have made us pay for goates one penny per pound.'

Though the Dutch did not form a regular settlement on the Mauritius till 1644, yet their vessels and those of other nations frequently called for supplies; and many persons—runaway seamen and others—lived on the island. It is not surprising that the awkward, slow-paced dodo, incapable of flight, and whose nest, as we are told by Cauche, never contained more than one egg, became totally extinct soon after coming into contact with man. Nor would man alone be directly the dodo's destroyer; his immediate followers, the cat, hog, and dog, must have been fatal neighbours to its young. Leguat, a gentleman of education, spent several months on the Mauritius in 1693, but makes no mention of the dodo. He says: 'This island was formerly full of birds, but now they are becoming very scarce;' and further adds: 'Here are pigs of the China breed. These beasts do a great deal of damage to the inhabitants, by devouring all the young animals they can catch.' Less than a century, then, sufficed to extirpate the dodo. It was first seen in 1598—it was last noticed in 1679; and as Leguat, in 1693, does not mention it, we may conclude that it became extinct at some period between the last two dates. In 1712, the Dutch evacuated the Mauritius, and three years afterwards the French took possession, naming it l'Ile de France. With

this change of population, the very tradition of the dodo's existence on that island was completely lost.

The relics of the dodo, still left to admiring naturalists, are few, but, in a scientific view, very precious. They consist in all of a head and leg in the Ashmolean Museum at Oxford, a leg in the British Museum, and a head in the Royal Museum (*Kunst-Kammer*) at Copenhagen. The head and leg at Oxford are the sole remains of Tradescant's dodo. After the death of the last of that family, Ashmole obtained possession of their museum, which he subsequently presented to the University of Oxford. This dodo can be clearly traced to have been in the Ashmolean Museum until the year 1755, when, having been suffered to fall into decay, it was, by the order of the vice-chancellor of the university, and a majority of the visitors, condemned to be burned! For a long time after, the dodo was forgotten, or the fact of its once having existed was treated as a mere myth, till Dr Shaw, in 1793, rummaging among the refuse of the museum, rediscovered this identical head and leg. The question arises: How were these relics preserved? Did some university magnate desire their retention from the flames? Did some conservative curator slyly conceal them before the fatal mandate was executed? No! Even this paltry palliation must be refused to the learned Vandals. It is to Ashmole himself that science is indebted for these remains of the last specimen of a whole species. That litigious old Chancery lawyer, when he presented his museum to Oxford, did so under certain restrictions, which he drew up with his own hands, and which the university was bound to obey. One of these rules decrees, that any specimen in a bad condition should not be totally destroyed; but any hard parts, such as the head, horns, or feet, should be put away in a closet. This head is still in tolerable preservation. The singular form of the beak and nostrils, the bare skin of the face, combined with the partly feathered head, which the old writers compared to a hood, are still strikingly apparent. Of the history of the leg in the British Museum, little is known. It formerly belonged to the Royal Society, and is in all probability the same that is mentioned in the catalogue of a museum that was offered for sale in London by a person named Hubert, in 1664. It is certain that the leg at Oxford, and that at London, did not belong to the same bird; for though they are right and left, and their perfect agreement in character proves their identity of species, yet one is nearly an inch longer than the other. The head at Copenhagen was described by

Olearius as early as 1666, in the catalogue of the museum of the Duke of Schleswig at Gottorf. In 1720, that museum was removed to Copenhagen, but it was not till within the last few years, when the history of the dodo excited so strongly the attention of naturalists, that this head was successfully sought for, and disinterred from a mass of rubbish, by Dr Reinhardt.

Many have been the conflicting opinions among naturalists with respect to the class of birds the dodo should be placed in. Space will not permit us to enter into these discussions. Suffice it to say, it is generally agreed now that the dodo was a gigantic, short-winged, fruit-eating pigeon. The English naturalist, Mr Strickland, who has devoted an amazing amount of labour and research to the elucidation of this mysterious question, and Dr Reinhardt of Copenhagen, were the first who referred the dodo to the pigeon tribe, having arrived almost simultaneously, by two distinct chains of reasoning, at the same conclusion; and their opinion is corroborated by a dissection that was lately made of part of the head at Oxford.

There can be no doubt that the dodo was one of those instances, well known to naturalists, of a species, or part of a species, remaining permanently in an undeveloped state. As the Greenland whale never acquires teeth, but remains a suckling all its life; as the proteus of the Carniolian caverns, and the axolotl of the Mexican lakes, never attain a higher form than that of the tadpole; so the dodo may be described as a permanent nestling covered with down, and possessing only the rudiments of tail and wings. Nor are we to consider such organisations as imperfect. Evidently intended for peculiar situations and habits of life, they are powerful evidences of the design displayed in the works of an All-wise Creator. Wandering about in the forests of the Mauritius, where, previous to the advent of man, it had not a single enemy, the dodo, revelling in the perpetual luxuriance of a tropical climate, subsisted on the nuts that fell from the surrounding trees. Its powerful bill enabled it to break, and its capacious, stone-supplied gizzard to digest, the hardest shells and kernels; and thus a kind of frugivorous vulture, it cleared away the decaying vegetable matter. In no other place than an island, uninhabited by man or any other animal of prey, could the helpless dodo have existed. Some fancy it may yet be found in Madagascar. Vain idea! Its carnivorous enemies among the lower animals, would have

cut short the existence of the dodo, even if man had never planted his conquering footsteps upon that island.

## FOOTNOTES:

[1] *Walgen*, to nauseate; *vogel*, a bird.

[2] *Waerachtigh Verhael van de Schipvaert op Ost-Indien, Ghedaen by de Acht Schepen in den Jare 1598.*

[3] A hole is here burned in the manuscript, as if by the ash of a tobacco-pipe. At the first hiatus, the word wanting is, without doubt, *saw*; and at the second, the letters, *of can*.

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# MONOPOLIES.

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In the High Street of Edinburgh, not many doors further up than the premises of the publishers of this Journal, there is a curious memorial of an old and now generally abolished economic grievance. It is a portrait of a certain Dr Patrick Anderson, a physician of the reign of Charles I. It is an old portrait, or rather the representative of an old portrait, since it has necessarily been repainted from time to time, the atmosphere of Scotland not being favourable to the preservation of works of art in the open air. It serves as the sign of an ancient shop, where for generation after generation has been sold the medicine known as Andersen's Pills. What renders the portrait and the establishment with which it is connected so interesting to our present purpose is, that there is still an existing patent for the making and selling of Andersen's Pills. In whose hands it may now be, we are not aware; but we know that, ten years ago, the right of succession to this patent was the subject of a keenly-contested litigation. The question of course was—who was entitled to hold it, as representative of the physician of the reign of Charles I.? The event is suggestive of the effects that would arise from extending patents and copyrights over a great series of years, or to perpetuity, as some have considered desirable. If we suppose the pills to be a very great blessing, is not every human being as well entitled, in justice and humanity, to have the benefit of them, as those who are fighting for the succession? What have they ever done to deserve a monopoly? If there were a perpetual copyright, who at the present day would be the representatives of Shakspeare or Milton; and what right would they have to reap great rewards from the riches with which the illustrious dead desired to endow all mankind? The inventors and authors themselves, it is true, deserve reward; and they obtain it in the shape of the limited monopoly. But the indefinite or very long continuance of this would only levy a tax to enrich those who have performed no service, and would fill the country with endless litigation. To return, however, to our special subject.



It may be a new thing to some of our readers, to hear of a patent more than two hundred years old. The cause of the anomaly is, that this exclusive privilege was granted before the present patent-law was extended to Scotland by the Union. Anderson called the pills *Grana Angelica*. He published an account of their astonishing virtues in a little Latin essay, which bears date 1635; and as it is believed that there are not more than three copies of this in existence, it is worth more than its weight in gold. He did not profess to be the inventor or discoverer of the medicine, but stated that he had found it in use at Venice.

Small as was thus the service for which Anderson and his posterity were endowed with a perpetual monopoly in these pills, it would have been well for the Stuart dynasty of kings if all monopolies granted by them had been as well deserved and as innocent. On the matter of monopolies, our ancestors had a hard struggle, and they acquitted themselves like men of sagacity and courage. The word monopoly is derived from the Greek. It means, sole-selling, and expresses itself at once. It is almost unnecessary at the present day to announce the law of political economy, that wherever a small number of individuals acquire the exclusive privilege of selling any commodity, or undertaking any particular kind of service, the public will be ill served. The price demanded will be high, and the commodity or the work will be bad in proportion. Thus much, indeed, of political economy our ancestors of the reign of King James knew. But it must be admitted, that they strangely confounded it with a totally different matter—with that forestalling of which we lately gave an account. The difference is, that in the one case there is the right to buy and sell as much of a commodity, or as little of it, as you please; and, in the other, the right to be the sole seller of the commodity. It is as great as the difference between freedom and slavery. No man can ever obtain a monopoly through money, unless it be by underselling all others; and that is a form in which it need not be grudged. However wide may be the field occupied by the forestaller, he cannot prevent others from competing with him, if he sell so dear that they can undersell him. The effect of an enforced monopoly is to drive competitors away, and give the monopolist the whole market on his own terms.

Many governments raise a revenue by granting monopolies. They levy a large sum from the individuals to whom they concede the privilege of

selling or making certain articles. It need hardly be said, that it is a very costly revenue, causing much more loss to the people than the amount it brings to the public purse; but it is a tempting resource, as it costs no trouble, and does not at least immediately bring the government to issue with the country. Queen Elizabeth did not overlook the convenience of this source of revenue. In fact, she pushed the system of monopolies very far, and nearly endangered the stability of her power. But she was a very wise ruler, and always stopped short at the point of endurance. Hallam gives the following animated account of a parliamentary contest in 1601. When we reflect on the departed corn-laws, the allusion to bread is certainly curious.

'The grievance of monopolies had gone on continually increasing; scarce any article was exempt from these oppressive patents. When a list of them was read over in the House, a member exclaimed: "Is not bread among the number?" The House seemed amazed. "Nay," said he, "if no remedy is found for them, bread will be there before the next parliament." Every tongue seemed now unloosed, each as if emulously descanting on the injuries of the place he represented. It was vain for courtiers to withstand this torrent. Raleigh, no small gainer himself by some monopolies, after making what excuse he could, offered to give them up. Robert Cecil, the secretary, and Bacon, talked loudly of the prerogative, and endeavoured at least to persuade the House, that it would be fitter to proceed by petition to the queen than by a bill; but it was properly answered, that nothing had been gained by petitioning in the last parliament. After four days of eager debate, and more heat than had ever been witnessed, this ferment was suddenly appeased by one of those well-timed concessions by which skilful princes spare themselves the mortification of being overcome. Elizabeth sent down a message, that she would revoke all grants that should be found injurious by fair trial at law; and Cecil rendered the somewhat ambiguous generality of this expression more satisfactory by an assurance, that the existing patents should be repealed, and no more be granted.'

The speeches of the members are a very favourable specimen of the parliamentary oratory of Queen Elizabeth's reign, as may be seen from the following delivered by Mr Martin. He is no philosopher, it will be observed, in political economy, but speaks from the actual grievances witnessed by him. 'I speak for a town that grieves and pines—for a country that groaneth

and languisheth under the burden of monstrous and unconscionable substitutes to the monopolitans [meaning sub-monopolists, who paid so much for enjoying the monopoly in a certain district] of starch, tin, fish, cloth, oil, vinegar, salt, and I know not what—nay, what not? The principal commodities both of my town and country are engrossed into the hands of those blood-suckers of the commonwealth. If a body, Mr Speaker, being let blood, be left still languishing without any remedy, how can the good estate of that body long remain? Such is the state of my town and country. The traffic is taken away. The inward and private commodities are taken away, and dare not be used without the licence of these monopolitans. If these blood-suckers be still let alone to suck up the best and principal commodities which the earth hath given us, what shall become of us from whom the fruits of our own soil and the commodities of our own labour—which, with the sweat of our brows, even up to the knees in mire and dirt, we have laboured for—shall be taken by warrant of supreme authority which the poor subjects dare not gainsay?' Another member, Sir Andrew Hobby, on the opposite side, started up, and said, 'that betwixt Michaelmas and St Andrews tide, where salt before the patent was wont to be sold for 16d. a bushel, it is now sold for 14d. or 15d. a bushel.'<sup>[4]</sup>

The Stuart monarchs were not, as the world too well knows, so wise as Queen Elizabeth. King James found the granting of monopolies a very convenient way of making a revenue. It saved him from coming in contact with a discontented parliament; and whatever heartburnings it might create, did not immediately affect his own royal comfort. Accordingly, he granted a number of monopolies both of necessities and luxuries. This created a system of the grossest oppression; since the great monopolists not only made as much as they could at the expense of the people, but sold portions of their monopolies to grasping, rapacious underlings, who conveyed the grievance into every corner of the land. These people became a hated and oppressive class, like the farmers of the revenue in France. According to a well-known anecdote, Voltaire, when in a company, each member of which had to tell some tragic story, was called upon in his turn. He said: 'There was once a farmer-general—you know the rest!' The same might have been said of the monopolists in the time of King James. One of them, indeed, has become in a manner illustrious in literature, by standing for the character of Sir Giles Overreach in the play of *A New Way to Pay Old Debts*. His

prototype was Sir Giles Mompesson, a person whose oppressions created so much indignation, that parliament at last resolved to impeach him. In the proceedings, it was stated that Sir Giles, for the purpose of effectually carrying out his patent of monopoly, held the power of imprisoning those who infringed it, without judicial authority or the privilege of trial; and that he thus had many persons in private prisons—a proceeding ever justly odious in England, and contrary to the spirit of the constitution.

One of Sir Giles's monopolies related to the licensing of inns and the selling of horse-provender. Strangely enough, however, that monopoly which created the chief indignation was for the preparation and sale of gold and silver lace. He 'sophisticated' it, as the parliamentary documents call it—that is, he used base metal instead of bullion. One could imagine such a monopoly existing without the people being greatly oppressed by it. But gold and silver lace was much used by the aristocracy, and it seems probable that the indignation of parliament was considerably excited by feelings of a somewhat personal character. It is well known, that the person who chiefly supported these monopolies, and had the largest share of advantage from them, was the infamous favourite, the Duke of Buckingham. Instead of standing by his accomplice, however, he no sooner saw the wrath of parliament seriously and dangerously roused, than he gave up the monopolist as a victim. King James, too, who had bullied and insulted all who complained, seeing that parliament was in a truly formidable humour, went sneaking there, and boasted of having done his best to apprehend Sir Giles. 'For I do assure you,' he said, 'in the heart of an honest man, and on the faith of a Christian king, which both ye and all the world know me to be, had these things been complained of to me before the parliament, I would have done the office of a just king, and out of parliament have punished them as severely, and peradventure more, than ye now intend to do. But now that they are discovered to me in parliament, I shall be as ready in this way as I should have been in the other. For, I confess, I am ashamed—these things proving so as they are generally reported to be—that it was not my good-fortune to be the only author of the reformation and punishment of them, by some ordinary course of justice.'

Parliament, however, wisely kept the matter in its own hands, and immediately passed one of the most remarkable laws in the statute-book.

This was no other than the act of 1623, establishing our system of patents for inventions. The original and main object of this act, was to take from the crown the power of granting monopolies. An exception was introduced, which is supposed to be owing to the enlightened foresight of Bacon, authorising the crown to grant for a limited period monopolies to inventors.

This law did not extend to Scotland until the Union; and hence it is, that in the High Street we have at this day in existence a patent of the reign of Charles I.

### **FOOTNOTES:**

[\[4\]](#) *Parliamentary History*, 1601.

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# A VENETIAN ADVENTURE OF YESTERDAY.

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I was induced last summer to do rather a foolish thing for a middle-aged spinster—I undertook to chaperon a volatile young niece upon a continental tour. We travelled the usual course up the Rhine into Switzerland, which we enjoyed rapturously. Then passing the Alps, we spent a few days at Milan, and next proceeded to Verona. In all this journey, nothing occurred to mar our English frankness, or disturb our good-humour. We beheld, indeed, the subjection of the Lombardese people with pain. Still, it was no business of ours; and I may as well candidly state that, to the best of my recollection, we gave exceedingly little thought to the subject.

At Verona, the romance of Claudia's character found some scope. She raved at the so-called tomb of Juliet, was never tired of rambling among the ruins of the Roman amphitheatre, and made herself ill with the fresh figs and grapes presented in such abundance in the picturesque old market-place. I confess I should as soon have dreamed of danger from some ancient volcano of the Alps, as from the political system of the country which we were traversing. Indeed, it never could have occurred to us that a quiet lady of a certain age, and a young one just emancipated from frocks, were persons about whom a great empire could have been in any alarm. It was destined that we should find ourselves of much more consequence than we gave ourselves credit for.

On returning from our ramble, and entering the great *sala* of the *Due Torre*, I remember experiencing a slight sense of alarm at sight of the large proportion of Austrian officers amongst those sitting down to dinner. Still, as the feeling sprung from no definite cause, I readily gave up my wish for a separate dinner; and, yielding to the solicitations of an officious waiter, allowed myself and niece to take seats at table. My first feeling returned in some force when I saw a tall, bearded officer, after depositing his sword in a corner of the room, seat himself next to Claudia. A request on her part for the salt sufficed to open a conversation between them; but as it was in

German, I could not follow its meaning. I observed, however, that it by and by waxed rather more warm than is customary in the languid hour of a *table-d'hôte*; and, what was more, a silence ensued amongst a considerable number of those within hearing, as if the subject of their conversation were of an interesting character. A kind-looking English gentleman on the opposite side of the table seemed to become uneasy, and he soon telegraphed to me with a look which I could not misunderstand. In real alarm, I touched Claudia's arm, and indicated my wish to retire. As soon as we reached our own apartment, I anxiously asked her what she had been saying, and what that animated conversation was about. 'Oh, nothing particular, Tantie dear. We were talking politics; but I am not a Republican, you know. You need not look afraid. I am a Royalist, and I told him so. Only, I said I thought it would be better for Italy to have an Italian king than an Austrian emperor. He did not seem to think so; but you know every one cannot think alike.'

'Oh, you unfortunate little girl!' I exclaimed; 'you little know the imprudence of which you have been guilty;' and I bitterly regretted my ignorance of German, which had allowed her to make such a demonstration of her sentiments. Still, she was but a child—what she had said was but a foolish sentiment. I could scarcely, after all, think that any serious consequences would ensue from so simple a matter; nevertheless, I felt that the sooner we left Verona the better. We accordingly started next morning for Venice.

It was a most lovely day. The sun shone richly on the thousands of grape-bunches that hung on the vines, and on the wild-flowers that grew at their feet; and then the beautiful languid way in which the vines grow added another charm to the scene: apparently overcome by heat and lassitude, they throw themselves from one tree to another for their support, and hang between them in graceful festoons. We were not long, however, in the region of the green, and now slightly autumn-tinted leaves; our steam-engine seemed suddenly to have conceived the idea of drowning us, for we darted into the sea, and with nothing but water on either side, we appeared to be hurried on by some gigantic rope-dancer, so light was the bridge over which we were carried. Involuntarily, I seized hold of Claudia's arm; but gradually I saw in the distance so beautiful a thing—such a silent, white,

fairy-like city, under such a brilliant sky, that I lost all earthly fear, and, in spite of the tangible railway carriage in which I was, I felt as if, like King Arthur, I was being borne by fairies to their fairy home.

At last we arrived, and entered by a long dusty passage the Dogana, in order to be examined. All romantic visions had now faded away: ordinary mortals were in attendance to look over our boxes; and it being the middle of a hot day, I began to feel both thirsty and tired, and most anxious to arrive quickly at the hotel, in order to secure comfortable apartments. Claudia stood for some time with the keys in her hand, vainly endeavouring to induce one of the custom-house officers to look at our boxes. The examination did not appear very strict, and we observed many of our fellow-passengers had their boxes just opened, and then were allowed to depart, with scarcely any delay. At last, one of the men approached us, and Claudia pointed to her open box, and asked him to examine it. The man looked up into her face—I thought, in a very scrutinising manner—then at the name on the box, and then retired, and whispered to one of his companions, who came back with him, and asked in Italian for our passport. This I immediately produced. They examined it, and said something to each other in German; upon which Claudia, who was more familiar with that language than with Italian, asked them in it to be kind enough to examine our boxes quickly, as her aunt was much tired. I saw the men exchange glances, and then they came forward to examine us. Being utterly unconscious of any necessity for concealment, we had left several English books at the very top of the box. These they carefully took out, and laid on one side, and then proceeded to rummage the boxes from top to bottom. By this time, as most of our fellow-passengers had been examined, and had proceeded to their hotels, I was getting fatigued and nervous, when it struck me that a small *douceur* would perhaps set matters right. This idea I communicated to Claudia, and she, speaking privately to a superior sort of man, who was overlooking the other, assured him that we were two perfectly unoffending English ladies travelling for pleasure, having nothing whatever to do with politics, and entreated him to let us go, at the same time putting some money in a hand conveniently placed for its reception. No sooner, however, had it been safely pocketed, than the man assured her that he could do nothing whatever for us, and that he must take some opportunity, when nobody was looking, of giving her back the money. It is



needless to say, that this opportunity never arrived; and in the meantime, we were taken into a small room, to be more particularly examined.

Here another box was opened, when, to the great vexation of my dear Claudia, her journal was found. Hitherto she had been very patient, but now she could bear it no longer. What! her journal, so carefully locked that nobody had ever been allowed to read it, to be at the mercy of these strange men! Claudia remonstrated loudly. 'They might have anything else they chose,' she said, 'but that she really could not give them.' She did not perceive that the more anxious she appeared about the book, the more important it seemed in their eyes, and the more anxious they, of course, were to retain it. After a long discussion, and many prayers and entreaties on Claudia's part, the books and papers were sealed up before us. They inquired what hotel we were going to, and told us we must call the next day for our books at a certain custom-house office they mentioned. Feeling harassed and persecuted, we proceeded to our hotel, my unhappiness being rendered more acute by our being separated from our *Murray*, without which I felt myself a perfectly helpless being, entirely at the mercy of any one who chose to impose upon me.

We obtained apartments at the hotel we intended lodging at, and as it was now late in the day, ordered our dinner, and retired early to rest, very anxious for the morrow, that we might know the fate of our books. Accordingly, the first thing we did the next day was to take a gondola, and proceed to the custom-house that had been mentioned to us. There, however, they knew nothing of our books. So we went to the British Consulate, to inform them of our case, and then returned to the hotel. During this voyage, I had several times observed a paper stuck against the walls, with *Notificazione* written in large letters on it, with some smaller printing beneath it. With a very uneasy heart, I asked Claudia to read it, and tell me what it meant. She did so, and found that it was informing the world in general, that two noble Italians were condemned, one to death, and the other to the galleys, for political offences. Of course, we were no judges of the rights of the case; but it is impossible not to feel one's heart saddened by the approaching death of a fellow-creature; besides which, my heart trembled for Claudia, and I conjured up to my mind the leaden-roof prisons; those beneath the ducal palace, those under water; the Bridge of Sighs; and

that fearful part of the lagoon where no fishing was allowed, lest it should reveal some fearful secret, known only to the dead, and to certain minions of the dread Council. In vain I repeated to myself, that those days were past; in vain was it that Claudia laughed at my fears, and told me it was disgraceful for a British subject to feel them: still my heart felt heavy, and I shall not soon forget the anxiety of that hour.

We returned to the hotel, where we had not long been, when we were informed that a gentleman wished to speak to us. Fearful moment! I pictured to myself a ferocious-looking officer with a guard, like those who come upon the stage with Jaffier. Somewhat to my relief, the reality turned out to be of a gentler character. I found myself introduced to a polite-looking personage, who, however, speedily informed me, through the medium of the waiter—for we had no common language—that he did not want me, but a younger lady! O my poor Claudia! My heart beating violently, I returned to her, and informed her that she was wanted. Instead of being at all alarmed, she appeared rather gratified at finding herself of so much importance, and hastened to join the person who was waiting for her. He, in a very polite and respectful manner, told us that our books were at the police-office, and only awaited our arrival to be examined. Accordingly, we ordered a gondola, and accompanied him there. On the way, he took an opportunity of informing Claudia, that he was not what was called in England a policeman, but a gentleman, and that the person who would examine her was a count. Claudia replied rather haughtily, that she was an English lady, and had never been examined by any one. At last we arrived, and proceeded to the apartment of the count; but what was my distress when I was informed that Claudia was to be examined alone! Claudia declared that she was a British subject, and that such a proceeding was an insult. I was almost in hysterics, and with tears entreated to be permitted to accompany my niece; but the obdurate though polite count was immovable. He merely said to Claudia: 'Madame, you have avowed that you have in your possession papers which have never been read by anybody but yourself; therefore you must be examined alone.' Further opposition was hopeless, so I returned disconsolate to my gondola, to await the issue.

When Claudia was left alone with the count, he shewed her a paper in which he was officially informed, that a lady of her name and appearance

was coming to Venice, who was suspected of being a dangerous political character. To hear such a character attributed to her—to her, who was only last year boarding in a school—to her, who knew little more of politics than that Queen Victoria and Prince Albert were the most amiable young couple in England—was ludicrous even in that hour of trouble. I do not exactly know how she comported herself during her examination; but I suspect she not merely laughed at the whole affair, but felt a little elated at the idea of being held as of so much importance. She was really anxious, however, about her journal and writing-case, as they contained so many things 'of no importance to any but the owner.' When the count informed her, that the journal and papers must, in the first place, be subjected to translation, she could set no bounds to her vexation; and yet the thing had its ridiculous aspect also. She had been pretty free, in the journal, with her criticisms on the Austrian army, though only with regard to the appearance and manners of the officers. How they were to take her remarks on their moustaches, their everlasting smoking, and their almost as constant perseverance in *dining*, was not to be conceived. Then her papers—scraps of paper on which she had tried rhymes, such as love, dove; heart, part; fame, name; with a view to embodiment in her poems—letters from young friends, telling all about the parties of their respective mammas, and how interesting the last baby was: to think of these being subjected to the rigid scrutiny of a council of either Ten or Three, was too whimsical. To the count, on the other hand, everything was grave and official. He said he could well believe, that she was innocent of all that had been imputed to her; still, his instructions must be obeyed. He could not promise the restoration of her papers in less than ten days. At the end of the examination, he courteously dismissed her, but not without letting her know, that she and her companion would be under the surveillance of the police till the papers were fully examined.

My light-hearted niece returned to me with an air of importance quite new to her, and which did not abate till she observed how exceedingly I had suffered during our separation. I felt reassured on learning that everything depended on the examination of the papers, as I had no doubt they were of a sufficiently innocent character. The shock, however, had been enough to mar my power of enjoying Venice. We did, indeed, go about to see the usual sights; and even the shadow-like attendance of the policeman ceased at

length to give us much annoyance. But I saw everything through an unpleasant medium, and heartily wished myself out of a region where the government of pure force seems the only one attainable. At the end of a fortnight, we received back our papers, with many apologies for their detention, and for the scrutiny to which we had been exposed; which, however, it too truly appeared, had been brought upon us by that one incautious expression of Claudia at Verona. Very soon after, we left Venice, and regained the safe shores of England with little further adventure.

[*Note*.—Let no one suppose that this is in any degree an exaggeration of the present state of things in Venice. Only about a month after the adventure of the two ladies, two individuals of that city were condemned for having been in correspondence with political exiles. One, a nobleman, had his sentence commuted to the galleys, at the intercession of a Spanish princess, daughter of Don Carlos; the other, a bookseller in the Piazza di San Marco, was hanged on the morning of Saturday the 11th October, during the whole of which day his body was exposed to the public gaze. The walls were next day found extensively inscribed with, 'Venetians! remember the murder of yesterday, and revenge it!'—*Ed.*]

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# STUDENT-LIFE AT CAMBRIDGE.

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Most Englishmen know as much about Timbuctoo or Patagonia as they either know or care to know about Oxford or Cambridge. Those, however, who have the curiosity to include such subjects in their knowledge of 'foreign parts,' will find a very pleasant guide to an acquaintance with the geography, language, laws, manners, and customs of Cambridge, in a work recently published by an American student,<sup>[5]</sup> who some years ago transferred his studies from Yale College to that university.

In describing Cambridge, Mr Bristed asks his readers to imagine the most irregular town that *can* be imagined—streets of the very crookedest kind, houses low and antique, with their upper storeys sometimes projecting into the narrow pathway, which leads the bewildered stranger every now and then over a muddy little river, winding through the town in all sorts of ways, so that in whatever direction he walks from any point, he is always sure before long to come to a bridge. Such is the town of Cambridge—the *bridge* over the *Cam*. And among these narrow, ugly, dirty streets, are tumbled in, as it were at random, some of the most beautiful academical buildings in the world.

It was in the October of 1840, that our young New-Yorker first wended his way through these narrow streets, and gazed upon these beautiful buildings. The idea of an educational institution scattered over an area of some miles, was new to the late inhabitant of the brick barn yclept Yale College. The monkish appearance of the population was no less novel, while his own appearance caused the gownsmen to retaliate his curiosity. He was dressed, he tells us, in the 'last Gothamite fashion, with the usual accessories of gold chain and diamond pin, the whole surmounted by a blue cloth cloak'—a costume which drew down upon him a formidable array of eye-glasses.

Mr Bristed entered Trinity College as a fellow-commoner. The fellow-commoners are 'young men of fortune,' who, in consideration of paying

twice as much for everything as anybody else, are allowed the privilege of sitting at the fellows' table in hall, and in their seats at chapel; of wearing a gown with gold or silver lace, and a velvet cap with a metallic tassel; and of getting off with a less number of 'chapels' per week. The main body of the students are called pensioners. The sizars are an inferior class, who receive alms from the college, and dine gratis after the fellows (*sic*), on the remains of their table.

When one 'goes up,' as the phrase is, to the university, the first academical authority he makes acquaintance with in the regular order of things, is the college tutor. Besides lecturing, this functionary is the medium of all the students' pecuniary relations with the college. He sends in their accounts every term, and receives the money through his banker; nay, more, he takes in their tradesmen's bills, and settles them also. The tutor is supposed to stand *in loco parentis*. Some colleges have one, others two, and even three tutors, according to the size. The first thing, is to be examined; and this over, the freshman is first inducted into his rooms by a *gyp* (from γυψ, a *vulture*!), who acts as flunkey to a dozen or twenty students—calling them in the morning, brushing their clothes, carrying parcels and the queerly-twisted notes they are constantly writing to each other, waiting at their parties, and so on. 'Boots' is a subordinate functionary. The furniture of the room is generally taken from the former occupant at a valuation by the college upholsterer. Crockery he has always to find for himself; but in this matter, again, he has the college authorities to assist him in getting a good article.

We shall now accompany the student through a day's history. Morning chapel begins at seven; and the *gyp* calls him at half-past six. In chapel, he commences picking up some knowledge of the powers that be, or the *dons*, as they are styled in the slang of the university. In general terms, they are the *master and fellows*.

The master, or 'head of the house,' is the supreme ruler within the college walls, and moves about like an undergraduate's deity. The fellows, who form the general body from which the other college-officers are chosen, are the aggregate of those four or five bachelor scholars per annum, who pass the best examination in classics, mathematics, and metaphysics. The eight

oldest fellows at any time in residence, together with the master, have the government of the college vested in them. The *dean* is the presiding officer in chapel: his business is to pull up the absentees—no sinecure, it is said. Even the scholars, who are literally paid for going, every chapel being directly worth two shillings sterling to them, give the dean a good deal of trouble. Other officers are the *vice-master*, the *bursar* or treasurer, lecturers, assistant-lecturers, assistant-tutors, four chaplains, and the librarian. Prayers last half an hour; after which the student walks in the college grounds, and by 8, he is seated by his comfortable fire over his hot rolls and tea. At 9, lectures begin, and continue till 12, some ten or eleven going on at once, and each occupying an hour. A little before 1, the student resorts to his private tutor, or *coach*, as the cantabs call him. He generally takes five or six pupils a day, giving an hour to each. The coach is indispensable to a student; and 'a good coach' is always in great requisition. His intercourse with his pupils is of the most familiar character; nevertheless, he must drive his team well, or he would lose his reputation. From 2 till 4 is the traditional time of exercise, the most usual modes of which are walking (constitutionalising is the cantab for it) and rowing. Cricketing, and all games of ball, are much practised in their respective seasons. Towards 4 P.M., they begin to flock in for dinner. A Latin grace is read by two of the dons, and forthwith the demolition of eatables proceeds. Though there is a common hall, there is no common table. On the contrary, there is no end to the variety, both as respects rank, provision, and privilege. Hall lasts about three-quarters of an hour. Two scholars conclude the business by reading a long Latin grace—the dons, it is said, being too full after dinner for such duty. After hall is emphatically lounging-time. Some stroll in the grounds; many betake themselves to the reading-room; and many assemble at wine-parties, to exchange the gossip of the day. At 6 P.M., the chapel-bell rings again, when the muster is better than in the morning. After chapel, the evening reading begins in earnest. Most of the cantabs are late readers, always endeavouring to secure several hours' consecutive work, their only intermission being to take a cup or two of tea by way of stimulus. One solid meal a day is the rule: even when they go out to sup, as a reading-man does perhaps once a term, and a rowing-man twice a week, they eat very moderately, though the same cannot always be said of their potations. Such is the reading-man's day—now for the boating-man's.

Boating is *the* university amusement, *par excellence*. The expense of it is small, and the Cam so convenient—just behind the colleges. At all times of the year you may see solitary men in wherries; while the boat-clubs for the formal spring-races are a convenient outlet for college emulation—the 'top of the river' being an honour hardly inferior to the senior wranglership. Each college has at least one boat-club; and about nine races take place in the season. They have an annual match with Oxford, in which they are generally victorious, for the cantabs are reckoned to be the best smooth-water 'oars' in England, if not in the world. The Cam not being much wider than a canal, it is impossible for the boats to race side by side. They are, therefore, drawn up in a line, two lengths between each, and the contest consists in each boat endeavouring to touch with its bow the stern of the one before it, which operation is called *bumping*; and at the next race, the *bumper* takes the place of the *bumped*. To-day, there is to be a race; and the gownsmen—not in their gowns—are hurrying down to the scene of action, distant two miles from the town. Bang! There goes the first gun! In three minutes, there will be another; and in two more, a third; and then for it! We are at the upper end of 'the Long Reach,' where we have a good view. The eight stalwart Caius-men bend to their oars the moment they see the last gun flash. On they come at a good rate, the Caius-men, who are first, taking it quite easy, when suddenly there is a shout: 'Trinity! Trinity! Go it, Trinity!' Trinity is now overhauling Caius at every stroke; and the partisans of the respective boats fill the air with their shouts. 'Now, Keys (Caius)!' 'Now, Trinity!' 'Why don't you pull, Keys?' 'Now you have 'em, Trinity!' 'Keys!' 'Trinity!' 'Now's your chance, Keys!' 'Pull, Trinity!' 'Pull, Keys!' 'Hurrah, Trinity! inity! inity!' Not more than half a foot intervenes between the pursuer and the pursued, still Caius pulls with all his might; for boats occasionally run a mile almost touching. But there is no more chance. One tremendous pull from Trinity, and half that distance has disappeared. Another such stroke, and you are aboard of them. Hurrah! a bump—a bump! Not so. Caius is on the look-out; and with a skilful inclination of the rudder, the steersman makes his boat fall off—just the least bit in the world, but enough—Trinity overlaps, but does not touch. Another moment, and Trinity is head of the river.

The staple exercise, however, is walking. Between 2 and 4, all the roads in the neighbourhood of Cambridge are covered with men taking their



constitutionals. Longer walks, of twelve or fifteen miles, are frequently taken on Sundays. There is not so much riding as might be supposed. When there is ice enough, the cantabs are great skaters. It is almost a *sine qua non* that their exercise should be in the open air. A finer set of men, consequently, is not to be seen. So bent, indeed, are they upon combining study and recreation, that, during the vacations, they form excursion-parties, which, from their professed design, are called *reading-parties* (*lucus a non lucendo*), and of which the utmost that can be advanced in justification of their name is, that reading is *not impossible*. Reading-parties do not confine themselves to England, or even the United Kingdom; sometimes they go as far as Dresden. When a crack tutor goes on one, which is not often, he takes his whole team with him.

Debating-clubs do not seem to be so common at the English universities as at the Scotch. At Cambridge, there is only one of a public nature—the 'Union.' Henry F. Hallam was instrumental in getting up a small society of about forty members, called the 'Historical.' Another society of a private nature was composed of a number of intellectual aspirants, called the 'Cambridge Apostles;' so called, it is said, because they had usually thirteen members in residence. This was a university feeder to the Metropolitan Club, founded by the friends of John Sterling. Their association had great influence in the formation of their minds and characters—a sort of mutual benefit society in more respects than one. For example, when a member of the club publishes a book, one of the fraternity has a footing in the *Edinburgh*, another in the *Quarterly*, a third in *Fraser*, and a fourth in *Blackwood*, and so the new work is well introduced. Both Tennyson and Thackeray, it is said, got well taken notice of in this way by their comrades. But there was no plan at the bottom of it—nothing to constitute them a name. The Apostles were always inveighing against cant—always affecting much earnestness, and a hearty dislike of formalism, which rendered them far from popular with the *high* and *dry* in literature, politics, or religion. They were eyed with terror by the conservatives as something foreign—German, radical, altogether monstrous. But, in reality, their objects were literary—not religious; and religion only entered into their discussions as it must into those of all serious and philosophic men.

Upon the whole, our young American was much pleased with Cambridge, and much benefited during his residence there. Genial himself, he found Englishmen the same; and though he had his eyes open, while in this country, and never forgot that he was an American, he writes with great impartiality, which raises the value of his intense enthusiasm for the English and English life. After five years' residence, he took leave of his friends in a series of substantial dinners, that there might be a pleasant memory of the transatlantic in their mouths. On a fine May morning, he took his last walk in the beautiful grounds of Trinity, and set out for New York, where he now leads a classical existence, puzzling the natives by his free use of the Græco-cantab dialect, as well as by a semi-pagan sort of worship which he pays to his *Alma Mater*.

### FOOTNOTES:

- [5] *Five Tears at an English University*, By C. A. Bristed. 2 vols. New York: 1852.
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# DREAMS.

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Dreams usually take place in a single instant, notwithstanding the length of time they seem to occupy. They are, in fact, slight mental sensations, unregulated by consciousness; these sensations being less or more intense, painful or agreeable, according to certain physical conditions. On this subject, the following observations occur in Dr Winslow's *Psychological Journal*:—'We have in dreams no true perception of the lapse of time—a strange property of mind! for if such be also its property when entered into the eternal disembodied state, time will appear to us eternity. The relations of space, as well as of time, are also annihilated; so that while almost an eternity is compressed into a moment, infinite space is traversed more swiftly than by real thought. There are numerous illustrations of this principle on record. A gentleman dreamed that he had enlisted as a soldier, joined his regiment, deserted, was apprehended, carried back, tried, condemned to be shot, and at last led out for execution. After all the usual preparations, a gun was fired; he awoke with the report, and found that a noise in the adjoining room had, at the same moment, produced the dream, and awakened him. A friend of Dr Abercrombie dreamed that he had crossed the Atlantic, and spent a fortnight in America. In embarking, on his return, he fell into the sea, and awakening in the fright, found that he had not been asleep ten minutes.'

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# A WIND-STORM AT NIGHT.

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O sudden blast, that through night's silence black  
Sweep'st past my windows,  
Coming and going with invisible track—  
As death or sin does—

Why scare me, lying sick, and—save thine own—  
Hearing no voices?  
Why mingle with a helpless human moan  
Thy fierce rejoices?

Thou shouldst come gently, as good angels come  
To souls departing;  
Floating among the shadows of the room  
With eyes light-darting:

Bringing faint airs of balm, and tones that rouse  
Thoughts of a Far Land;  
Binding so softly upon aching brows  
Death's poppy-garland.

O fearful blast, I shudder at thy sound;  
Like some poor mortal  
Who hears the Three that mark life's doomèd bound  
Sit at his portal.

Thy wings seem laden with sad, shrieking souls,  
Borne, all unwilling,  
From earth's known plains, to the unknown gulf that  
rolls,  
Evermore filling.

Fierce wind! will the Death-Angel come like thee,  
And swiftly bear me—  
*Whither?*—What mysteries may unfold to me?  
What horrors scare me?

Shall I go wandering on through silent space,  
Lonely—still lonely?  
Or seek through myriad spirit-ranks one face,  
And miss that only?

Shall I not then drop down from sphere to sphere,  
Palsied and aimless?  
Or will my being new so changed appear  
That grief dies nameless?

Rather, I pray Him who Himself is Love,  
Out of whose essence  
All pure souls spring, and towards Him tending,  
move  
Back to His presence—

His light transfiguring, may not efface  
The soul's earth-features,  
That the dear human likeness each may trace—  
Glorified creatures:

That we may love each other, only taught  
Holier desiring;  
And seek all wisdom, as on earth we sought,  
Ever aspiring:

That we may do all work we left undone  
Through frail unmeetness;  
From sphere to sphere together passing on  
Towards full completeness.

Then, strong Azrael, be thy solemn call  
Soft as spring-breezes,

Or like this blast, whose loud fiend-festival  
My heart's pulse freezes—

I will not fear thee!—If thou safely keep  
My soul, God's giving,  
And my soul's soul—I, wakening from death's sleep,  
Shall first know *living*.

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